



CHAPTER xxi.

An Act to confer further powers on the Metropolitan District Railway Company and for other purposes. A.D. 1905.

[30th June 1905.]

WHEREAS by the Metropolitan District Railway Act 1897 (in this Act called "the Act of 1897") the Metropolitan District Railway Company (in this Act called "the Company") were authorised to construct the railway in the Act of 1897 described between the Earl's Court Station of the Metropolitan District Railway and the Mansion House Station on that railway :

And whereas by the Metropolitan District Railway Act 1903 (in this Act called "the Act of 1903") the Company were authorised to construct a railway in that Act called Railway No. 2 being a deviation of the western end of the railway authorised by the Act of 1897 :

And whereas in pursuance of the powers so granted by the Act of 1903 the Company have transferred to the Great Northern Piccadilly and Brompton Railway Company (in this Act called "the Brompton Company") the Company's powers to construct Railway No. 2 authorised by the Act of 1903 and also such portion of the railway authorised by the Act of 1897 as lies between the commencement of the said Railway No. 2 at or near Gloucester Road Station and South Kensington Station :

And whereas the Brompton Company are constructing the said Railway No 2 and the said portion of the railway authorised by the Act of 1897 :

And whereas the cost of constructing the said Railway No. 2 and the said portion of railway authorised by the Act of 1897 was estimated at about four hundred thousand pounds which

A.D. 1905. — amount the Company were authorised to raise for those purposes under the Act of 1897 but as such sum is not now required for those purposes but is required and may be otherwise advantageously applied for other purposes of the Company it is expedient that the Company be authorised to apply the said sum of four hundred thousand pounds for the purposes of the Company as in this Act mentioned:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

Short title.

1. This Act may be cited as the Metropolitan District Railway Act 1905.

Interpretation.

2. In this Act the following words and expressions have the meanings hereby assigned to them:—

“The Company” means the Metropolitan District Railway Company;

“The Act of 1897” means the Metropolitan District Railway Act 1897;

“The Act of 1903” means the Metropolitan District Railway Act 1903.

Application of portion of capital authorised by Act of 1897.

3. Notwithstanding anything in the Act of 1897 a sum of not exceeding three hundred thousand pounds being a portion of the additional capital of one million two hundred thousand pounds which the Company are by section 70 (Power to raise additional capital) of the Act of 1897 authorised to raise by the issue of new ordinary shares or stock or new preference shares or stock and the sum of not exceeding one hundred thousand pounds which they are authorised by this Act to borrow in respect of the said sum of three hundred thousand pounds may be applied by the Company in or towards the general purposes of the undertaking of the Company the cost of adapting their railways for electrical working the renewal improvement and widening of their railways stations and works the purchase or adaptation of rolling stock and plant for working their railways by electric power and in providing for any loss on the sale of rolling stock or plant or cancellation of any contract in connection

[5 EDW. 7.] *Metropolitan District Railway Act, 1905.* [Ch. xxi.]

therewith and in payment of arrears on the Company's guaranteed stocks. A.D. 1905.

4. If the Company raise the sum of three hundred thousand pounds referred to in the section of this Act of which the marginal note is "Application of portion of capital authorised by Act of 1897" and the sums which the Company are authorised to raise by the issue of new preference shares or stock by the Whitechapel and Bow Railway Act 1902 and by any Act relating to the Whitechapel and Bow Railway Company which may be passed during the present session of Parliament or any of such sums or any part thereof by the creation and issue of preference stock such preference stock may with the sanction of not less than three fourths in nominal value of the holders of the second preference stock of the Company present in person or by proxy at a meeting of the holders of that stock specially convened for the purpose be issued so as to rank for dividend *pari passu* with the second preference stock of the Company but except with such sanction the said preference stock shall rank for dividend next after the second preference stock of the Company but shall in either case confer on the holders thereof the same privileges and advantages for the purpose of voting at meetings of the Company as the holders of the existing preference stocks of the Company have.

As to raising additional capital by preference stock.

5. The words "and in payment of such arrears on the Company's guaranteed stocks as are a charge on the Company's undertaking" at the end of section 92 (Sale of rolling stock and application of proceeds Application of funds in improvement of railway) of the Act of 1903 are hereby repealed.

Repeal of portion of section 92 of Act of 1903.

6. So much of section 76 (Power to borrow) of the Act of 1897 as applies to the borrowing of the sum of four hundred thousand pounds in respect of the additional capital of one million two hundred thousand pounds therein mentioned is hereby repealed and the following provisions shall have effect in lieu thereof (that is to say) :—

Power to borrow.

- (1) The Company may in respect of the sum of one million two hundred thousand pounds of additional capital authorised by the Act of 1897 borrow on mortgage of the undertaking any sum not exceeding in the whole four hundred thousand pounds (that is to say) in respect of nine hundred thousand pounds of such capital any sum not exceeding three hundred thousand

A.D. 1905.

pounds and in respect of the three hundred thousand pounds of such capital referred to in the section of this Act of which the marginal note is "Application of portion of capital authorised by Act of 1897" any sum not exceeding one hundred thousand pounds :

- (2) No part of such sums of three hundred thousand pounds and one hundred thousand pounds respectively shall be borrowed —

(a) If the respective portion of capital in respect of which any such sum is borrowed is to be raised by means of shares until shares for such portion of capital are issued and accepted and one half thereof is paid up and the Company have proved to the justice who is to certify under the fortieth section of the Companies Clauses Consolidation Act 1845 before he so certifies that shares for the whole of such portion of capital have been issued and accepted and that one half thereof has been paid up and that not less than one-fifth part of the amount of each separate share in such respective portion of capital has been paid on account thereof before or at the time of the issue or acceptance thereof ; or

(b) If such respective portion of capital is to be raised by means of stock then until stock for one half of such respective portion of capital is issued and fully paid up ;

(c) And until the Company have proved to such justice as aforesaid before he so certifies that such shares or stock as the case may be were issued bonâ fide and accepted and to the extent aforesaid paid up and are held by the persons to whom the same were issued or their executors administrators successors or assigns and also so far as such respective portion of capital as the case may be is raised by shares that such persons or corporations their executors administrators successors or assigns are legally liable for the same :

- (3) Upon production to such justice of the books of the Company and of such other evidence as he shall think sufficient he shall grant a certificate that the proof aforesaid has been given which shall be sufficient evidence thereof.

7. The Company may create and issue debenture stock subject to the provisions of section 67 of the Act of 1903. Debenture stock.

8. The Company shall not out of any money by this Act authorised to be raised pay or deposit any sum which by any standing order of either House of Parliament now or hereafter in force may be required to be deposited in respect of any application to Parliament for the purpose of obtaining an Act authorising the Company to construct any other railway or to execute any other work or undertaking. Deposits for future Bills not to be paid out of capital.

9. Nothing in this Act contained shall exempt the Company or their railways from the provisions of any general Act relating to railways or the better and more impartial audit of the accounts of railway companies passed before or after the passing of this Act or from any future revision or alteration under the authority of Parliament of the maximum rates of fares and charges or of the rates for small parcels authorised by this Act. Provision as to general Railway Acts.

10. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company. Costs of Act.

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